

MINUTES
Historic & Architectural Review Commission Meeting
March 16, 2022 Virtual Online Meeting 5:30 PM

COMMISSION
PRESENT:

Chair Mark Shambaugh
Vice Chair Sherri Harvey (Left the meeting at 10:06 p.m.)
Commissioner Stacy Lake
Commissioner Kiernan Lannon
Commissioner Matt Lee
Alternate Mark Hebert

COMMISSION
ABSENT:

None

STAFF PRESENT:

Historic Preservation Planner Erika Jensen
Town Clerk Tiffany Kavanaugh
Program Director Lance McDonald
Boards & Commissions Secretary Piper Miller
Assistant Town Attorney Alexandra Slaten
Acting Town Manager Greg Sund
Planner Phil Taylor
Planning and Building Director Ron Quarles
Historic Preservation Director Jonna Wensel

COUNCIL PRESENT:

DeLanie Young, Liaison
Adrienne Christy
Dan Enright
Geneva Shaunette

MEETING INFORMATION

This meeting was held virtually due to the COVID-19 virus.

I. SITE WALKS

1:00PM - Meet at 121 N. Pine St.

1:20PM - Meet at 233-235 East Pacific (Voodoo Lounge Site)

II. CALL TO ORDER (5:30PM)

The meeting was called to order at 5:31 p.m.

Chair Shambaugh announced a site walk occurred at 1:00 p.m. at 121 N Pine Street and the Commission only had discussions related to orientation of the site, the physical characteristics and the layout of the site only. Present for the site walk were Sherri Harvey, Kiernan Lannon, Stacy Lake, Mark Hebert, DeLanie Young, Jonna Wensel, Erika Jensen, Bruce Wright, and four members of the public.

Chair Shambaugh announced a second site walk occurred at 1:20 p.m. at the Voo Doo Lounge site. The Commission only had discussions related to orientation of the site, the physical characteristics and the layout of the site only. Present for the site walk were Sherri Harvey, Kiernan Lannon, Matt Lee, Mark Hebert, DeLanie Young, Jonna Wensel, Erika Jensen, Greg

Sund, at least fifteen members of the public, and Applicants Maura Trumble and Todd Kennedy.

III. APPROVAL OF MINUTES

1 HARC Meeting Minutes dated February 16, 2022

MOTION

To approve the meeting minutes dated February 16, 2022.

Moved by Sherri Harvey, seconded by Kiernan Lannon.

VOTE

A roll call vote was taken, and the motion PASSED unanimously.

IV. STAFF ANNOUNCEMENTS

Director Wensel announced meetings will return to in-person beginning in April and discussed a proposed date for a joint HARC, PZ, and Town Council Retreat.

Chair Shambaugh reviewed the public hearing process via the shared screen function (Exhibit IV.1).

V. PUBLIC COMMENT ON NON-AGENDA ITEMS

There was no public comment.

VI. REVIEW AND RECOMMENDATION ITEMS

1 **PROJECT TITLE:** Voodoo Lounge- Preliminary PUD & Voodoo Lounge Preliminary Subdivision

SUMMARY: A Review and Recommendation by HARC to the Planning and Zoning Commission of a Preliminary Large-Scale PUD at 235 East Pacific Avenue and 134 South Spruce Street (property) requesting two PUD variations pursuant to LUC Article 6, Division 3 including the following variations: **1)** Create a lot over 11,750 square feet pursuant to LUC Section 3-212.C.2.a. The proposed lot totals approximately 17,380.44 square feet. **2)** Increase in height from 35' to 36.3' for the majority of the building and a maximum height of 40' for approximately 19% of total lot area; and, Consideration of a Preliminary Large-Scale Subdivision application to create two new lots. One lot of approximately 17,380.44 sqft (0.399 acres) and one lot of approximately 5,575.68 sqft. (0.128 acres) pursuant to LUC Article 6, Division 4.

LEGAL DESCRIPTION: Lots 1,2,3 and 4, Block 10, Town of Telluride; and, the east 63.5 feet of Lots 6 and 8, and the north 12 feet of the west 54 feet of Lot 6, Town of Telluride, according to the Plat recorded in Plat Book 28, at Page 1, County of San Miguel, State of Colorado.

ADDRESS: 235 East Pacific Avenue and 134 South Spruce Street

ZONE DISTRICT: Commercial (C)

OWNER: Town of Telluride

APPLICANT: Town of Telluride

STAFF MEMBER: Phil Taylor, Senior Planner

Planner Taylor presented via the shared screen function (Exhibit VI.1.a), reviewed details of the application, and discussed details of the review process. Planner Taylor responded to questions and comments from the board. Director Quarles and Assistant Town Attorney Slaten provided input.

Applicants Maura Trumble and Todd Kennedy presented via the shared screen function (Exhibit VI.1.b).

Public comment was received from Douglas Tueller, Dave Valentine, Jacque Garcia, Joe Solomon, Emily Robinson, and Eric Cummings.

MOTION

To recommend to the Planning and Zoning Commission approval of the Preliminary Large Scale Planned Unit Development located at 235 East Pacific Avenue and 134 South Spruce Street with the findings noted in the staff report dated March 7, 2022, to allow the following PUD variations:

- 1. Increase in lot size to a maximum of 17,400 square feet for the proposed Lot A, which shall contain the new affordable housing structure.*
- 2. Height to be determined and recommended after the public hearing preliminary approval by HARC.*

And the following conditions:

- 1. The following public benefit will be provided in exchange for the listed PUD variations:*
 - Provide approximately 25,000 square feet of deed restricted affordable housing in conformance with the Housing Guidelines.*
- 2. The large-scale subdivision application is dependent upon the concurrent PUD and HARC development plan approvals. Should the PUD or HARC development plan not be approved, the lot size and height recommendations shall be null and void.*

Moved by Mark Shambaugh, seconded by Kiernan Lannon.

VOTE

A roll call vote was taken, and the motion PASSED, 4-1.

Vice Chair Harvey dissenting.

MOTION

To recommend to the Planning and Zoning Commission approval of a large-scale subdivision located at 235 East Pacific Avenue and 134 South Spruce Street to replat four fully platted lots, a vacated alley and portions of two lots into two new lots know as Lot A and Lot B. Lot A results in a 17,380.44 square foot lot and Lot B results in a 5,575.68 square foot lot with the findings and recommended conditions contained in the staff memo dated March 7, 2022.

Conditions:

- 1. The large-scale subdivision application is dependent upon the concurrent PUD and HARC development plan approvals. Should the PUD or HARC development plan not be approved, the large-scale subdivision is rendered null and void.*
- 2. Upon final plat submittal the plat will conform with Section 6-407.C- Approvals and Certificates.*
- 3. The final plat will incorporate any redline comments provided by staff.*

4. *The final large-scale subdivision plat must be recorded prior to building permit issuance.*
5. *Approval of the Preliminary Large-Scale Subdivision shall constitute authorization for the Applicant to prepare and submit a Final Large Scale Subdivision application in accordance with the representations made by the applicant and conditions applied to the preliminary approval. The preliminary approval shall be effective for a maximum period of twelve (12) months unless, upon application, P&Z grants an extension of time. A preliminary large scale subdivision approval shall not constitute a site-specific development plan for purposes of vesting a property right.*

Moved by Kiernan Lannon, seconded by Matt Lee.

VOTE

A roll call vote was taken, and the motion PASSED, 4-1.

Vice Chair Harvey dissenting.

2 PROJECT TITLE: Transfer Warehouse- PUD Amendment

SUMMARY: A Review and Recommendation by HARC to the Planning and Zoning Commission regarding a PUD Amendment to amend the Transfer Warehouse PUD by modifying language regarding renovations of the Transfer Warehouse building as it pertains to the installation of a roof.

LEGAL DESCRIPTION: Lot 5R-R, Block 17, Town of Telluride, a Minor Subdivision of Lot 5R, Block 17 and a portion of the Pacific Avenue and Fir Street Rights of Way, Town of Telluride, San Miguel County, according to the Plat recorded on December 18, 2018, at Reception No. 456472.

ADDRESS: 201 South Fir Street

ZONE DISTRICT: Commercial (C)

OWNER: Telluride Council for the Arts and Humanities d/b/a Telluride Arts

APPLICANT: Justin Helmbrecht, Olson Kundig Architects

STAFF MEMBER: Ron Quarles, Planning and Building Director

Public comment received after packet publication was distributed to the Commission under separate cover (Exhibit VI.2.a)

Director Quarles presented details of the application, background on the PUD, and responded to questions and comments from the board.

Applicants Justin Helmbrecht, Douglas Tueller, and Kate Jones addressed the Commission.

Public comment was received from Dave Valentine, Emily Robinson, Eric Cummings, Mark Lowes, Arthur Goldberg, Stephen Johnson, Rosie Cusack, James Grifo.

MOTION

To recommend approval to the Planning and Zoning Commission of the amendments to the Telluride Transfer Warehouse Large Scale Planned Unit Development, with the findings set forth in the Staff Memo of record dated March 9, 2022 and with the following conditions:

1. *Amendment reflecting the change shall also be made to the Development Agreement and Planned Unit Development Agreement and the Declaration of Covenants and Restrictions (Transfer Warehouse Parcel Covenant) that shall be recorded with the County Clerk and Recorder.*

2. *The installation over a portion of the structure not dedicated to positive open space/courtyard as to be approved and be subject to HARC final approval per WC#12.*

This motion is based on evidence and testimony provided at a public hearing held on March 16, 2022, with notice of such hearing provided as required by the Telluride Land Use Code.

Moved by Sherri Harvey, seconded by Matt Lee.

PASSED unanimously.

VII. PUBLIC HEARING ITEMS

- 1 **PROJECT TITLE:** VooDoo Lounge Affordable Housing (*continued from the Feb. 2, 2022 special HARC meeting*)

SUMMARY: Consideration of applications for **A)** the Insubstantial alteration to a non-designated structure (Marshal's Department Building) which does not increase its floor area, per LUC 7-203.D.4; **B)** the Insubstantial demolition of a non-designated secondary structure (shed) within the THLD, per LUC 7-203.D.7; **C)** the Minor-Scale alterations to a rated structure (Contributing shed 5SM.1606) which does not increase its floor area, per LUC 7-203.C.8; **D)** the Small-Scale demolition of a non-designated principal structure (VooDoo Lounge) within the THLD, per 7-203.B.8; and **E)** the Preliminary Large-Scale new construction in the Commercial zone district which will contain more than 5,000 s.f. of floor area, per LUC 7-203.A.2.

LEGAL DESCRIPTION: Lots 1 & 3, portions of Lots 2, 4, 6 & 8, and vacated alley ROW, Block 10, TOT

ADDRESS: TBD, 200 Block of East Pacific Ave.

ZONE DISTRICT: Commercial

OWNER: Town of Telluride

APPLICANT: CCY Architects

STAFF MEMBER: Jonna Wensel, Historic Preservation Director

Director Wensel distributed public comment received after packet publication to the Commission under separate cover (Exhibit VII.1.b).

Director Wensel announced a site walk occurred earlier in the day, introduced the item, and reviewed HARC's purview for review. Director Wensel presented via the shared screen function (Exhibit VII.1.a), reviewed details of the application and design, provided background on approvals and conditions to date, and responded to questions and comments from the board.

BREAK

A break was taken from 8:13 p.m. to 8:15 p.m. to allow time to review public comment received.

Applicant Maura Trumble, CCY Architects, presented via the shared screen function (Exhibit VII.1.b) and reviewed the project plans and amendments made since the previous meeting. Maura Trumble and Todd Kennedy, CCY Architects, responded to questions and comments from the board.

Public comment was received from Dave Valentine, Eric Cummings, and Emily Robinson.

MOTION

To continue to the April 20, 2022 regular HARC meeting the Insubstantial alteration to a non-designated structure (Marshal's Department Building); Minor-Scale alterations to a rated structure (Contributing shed 5SM.1606); and Preliminary Large-Scale new construction, located at Lots 1 & 3, portions of Lots 2, 4, 6 & 8, and vacated alley ROW, Block 10, Town of Telluride, based on the findings in the staff memo dated March 16, 2022, and with the following conditions:

- 1. Enhance the pedestrian scale at the ground level of the gabled modules facing Pacific Ave., consistent with WC#6.A, WC#6.C.*
- 2. Provide details of the historic shed replacement windows, consistent with RE#8.A and RE#8.D.*
- 3. Provide details of the new shed doors, consistent with RE#9.*
- 4. Provide details of the shed's new foundation, consistent with RE#10.A.*
- 5. Reduce the height of commercial and residential buildings on Pacific and Willow, as well as the alley as per WC#21.C.1, WC#6, WC#6.A, WC#33.A., WC#1, WC#2, and WC#5.*
- 6. Set back the third story along Pacific at the three story gable forms as per WC#6.A. and WC#25.A.*
- 7. To increase the setback along Pacific at the corner to be in line with blue crib as per WC#15.B. and WC#6.*
- 8. Consider increasing the depth of the recess from 8 feet to create the appearance and break in the building to create the appearance of modules as per WC#12.A.1 and WC#A.3, WC#5.E., WC#13.A., and WC#15.A.*
- 9. Reduce the height corner portion along Pacific as per WC# 1 WC#2, WC# 6*
- 10. Create a clearly defined entrance to Willow as per WC#14.B. and WC#14.B.2.*
- 11. Step back the third floor along the alley or reduce the overhang as per WC#15, Alley Standards 1.B., AS#1, AS#1.C., and AS#1.C.3.*
- 12. To consider stepping back the second floor along the alley as per WC#15, AS#1.B., AS#1, AS#1.C. and AS#1.C.3.*
- 13. Consider increasing the four foot setback on the third story west of the shed.*
- 14. Reintroduce bicycle parking as per WC#7.*

Moved by Sherri Harvey, seconded by Kiernan Lannon.

VOTE

A roll call vote was taken, and the motion PASSED 4-1.

Commissioner Lee dissenting.

2 **PROJECT TITLE:** Virginia Placer Phase 2A

SUMMARY: Consideration of an application for Final Large-Scale new construction in the Public Purpose zone district which will contain more than 2,500 s.f. of floor area, per LUC 7-203.A.1

LEGAL DESCRIPTION: Lot B-1.2R Virginia Placer, Acc to Plat Book 1, Page 4898, Jan 20 2017 446235 Cont 7.53 Acres (More or less)

ADDRESS: TBD Black Bear Road

ZONE DISTRICT: Public Purpose

OWNER: Town of Telluride

APPLICANT: Allison Construction

STAFF MEMBER: Erika Jensen, Historic Preservation Planner

Planner Jensen presented via the shared screen function (Exhibit VII.2.a), reviewed details of the application, amendments made since the last application, and responded to questions and comments from the board.

There was no public comment.

MOTION

To approve the Final Large-Scale application at 1300 Black Bear Road, (Virginia Placer, Phase 2A), based on the staff memo dated March 16, 2022, with the following conditions:

1. *Provide a detail of the trash enclosure, consistent with AC#21.*
2. *Revise the metal deck railings on the second and third floor north elevation and second floor west elevation to be less transparent, consistent with RPC#14.A.3.*
3. *Per LUC Sec. 3-820.D, following HARC approval, and prior to issuance of a building permit, the Planning Director shall issue an exemption letter for the wetland setback per the Wetland Regulations to ensure there is no conflict with the HARC application of the design guidelines for the River Park Corridor Treatment Area.*
4. *Steepen the roof pitch from ¼ 12 to help with snow shedding and drainage consistent with AC#26.*
5. *Continue to explore reducing the south setback further as per AC#16.A.*

This motion is based on evidence and testimony provided at a public hearing held on March 16, 2022, with notice of such hearing provided as required by the Telluride Land Use Code.

Moved by Kiernan Lannon, seconded by Matt Lee.

VOTE

A roll call vote was taken, and the motion PASSED unanimously.

3 **PROJECT TITLE:** Salem Residence

SUMMARY: Consideration of a Small Scale application for new construction in the Hillside Developing II Zone District which is located outside the THLD, but within the HPOD, and will contain 1,500 s.f. or more of floor area, but not more than 2,500 s.f. of floor area, per LUC 7-203.B.1.b

LEGAL DESCRIPTION: Lot 20, The Overlook at Telluride Subdivision / PUD, East Telluride Addition

ADDRESS: 774 Primrose Lane

ZONE DISTRICT: Hillside Developing II

OWNERS: Windhorse Properties, LLC, A Colorado Limited Liability Company

APPLICANT: Adam De Alva, De Alva Architects

STAFF MEMBER: Erika Jensen. Historic Preservation Planner

Clerk's note: Vice-Chair Harvey left the meeting at 10:06 p.m.

Planner Jensen presented via the shared screen function (Exhibit VII.3.a), reviewed details of the application and proposed conditions of approval. Planner Jensen responded to questions.

Applicant Adam de Alva presented via the shared screen function (Exhibit VII.3.b) and addressed proposed conditions. Applicant de Alva responded to questions.

There was no public comment.

MOTION

To approve the Small-Scale application at 774 Primrose Lane, based on the staff memo dated March 16, 2022, with the following conditions:

1. *Reduce glazing on the four pack on the south elevation consistent with DH#25.A and DH#25.B.*
2. *Make all doors no more than two-thirds light, consistent with DH#26.A.3 and ES#3.A.2.*
3. *Ensure that the selected solar panels and frames are non-reflective, consistent with DH#29.A.7.*
4. *Consider choosing a new sconce that is downlit and has a bulb that is enclosed within a shade, consistent with ES#1.C.2.*
5. *Reduce the number of sconces on the south elevation, consistent with ES#2.B.4.*

This motion is based on evidence and testimony provided at a public hearing held on March 16, 2022, with notice of such hearing provided as required by the Telluride Land Use Code.

Moved by Matt Lee, seconded by Kiernan Lannon.

VOTE

A roll call vote was taken, and the motion PASSED unanimously.

4 **PROJECT TITLE:** Pine Street Perch

SUMMARY: Consideration of **A)** the Small-Scale Demolition of a non-designated principal structure (house) within the THLD, per LUC 7-203.B.8; **B)** the Small-Scale Demolition of a non-designated principal structure (barn) within the THLD, per LUC 7-203.B.8; **C)** the Preliminary Large-Scale New Construction in the Residential/Commercial zone district, which will contain more than 2,500 s.f. of floor area, per LUC 7-203.A.1.

LEGAL DESCRIPTION: Lots 1 and 3, Block 5, Town of Telluride

ADDRESS: 121 N. Pine Street

ZONE DISTRICT: Residential/Commercial

OWNER: S. Spruce Street Partners LLC

APPLICANT: One Architects, Inc; Bruce Wright

STAFF MEMBER: Jonna Wensel, Historic Preservation Director

The Commission was running over schedule and agreed to continue this item to a future meeting. Director Wensel discussed meeting date options.

MOTION

To continue the item to the April 20th HARC meeting.

Moved by Mark Shambaugh, seconded by Kiernan Lannon.

VOTE

A roll call vote was taken, and the motion PASSED, 4-0.

Commissioner Lee recused due to a proximity conflict of interest.

VIII. BOARD AND STAFF DISCUSSION

There was no Board and Staff discussion.

IX. ADJOURN

The meeting was adjourned by unanimous consent at 10:30 p.m..



Boards and Commissions
Secretary Piper Miller

Town Clerk Tiffany Kavanaugh